

HCJDA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.2760/2025

Muhammad Gulzar vs **The State, etc.**

JUDGMENT

Date of hearing:	<u>10.07.2025</u>
Petitioner by:	Ch. Rab Nawaz, Advocate.
State/respondent No.1 as well as respondent No.2 by:	Ms. Khalida Parveen, Additional Advocate General, Punjab.
Respondents No.3 and 4 by:	Nemo. Respondents No. 3 and 4 have already been proceeded against <i>ex-parte vide</i> order dated: 09.07.2025 passed by this Court.

Farooq Haider, J:- Through instant petition filed by

Muhammad Gulzar (**petitioner**), following prayer has been made: -

“It is, therefore, most respectfully prayed that this petition may very kindly be accepted and the respondent No.2 may kindly be directed to release the petitioner by counting his conviction and sentences concurrently in both the above mentioned cases as per mandate of law, to meet the ends of justice.

Any other appropriate relief which this Hon'ble court deems fit and proper may also be awarded to the petitioner.”

2. Brief however necessary facts for deciding instant petition are that Muhammad Gulzar (present petitioner hereinafter to be referred as “**petitioner**”) alongwith his co-accused namely Qasim faced trial in case arising out of F.I.R. No.297/2001 dated: 28.09.2001 registered under Sections: 302, 34, 324 PPC at Police Station: Bhowana, District: Jhang (hereinafter to be referred as “**1st case**”) and after conclusion of the trial, petitioner was convicted and sentenced *vide* judgment dated: 28.09.2012 passed by learned Additional Sessions Judge, Chiniot (Camp at District Jail, Faisalabad) as under: -

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302 (b) PPC read with Section: 34 PPC	“ Death ” with payment of compensation of Rs.2,00,000/- to be paid to the legal heirs of the deceased under Section: 544-A Cr.P.C.

Under Section: 324 PPC read with Section: 34 PPC	“Seven years’ Rigorous Imprisonment” along with fine of Rs.10,000/- and in default thereof to further undergo Simple Imprisonment for six months.
Under Section: 337-F(iii) PPC read with Section: 34 PPC	“Three years’ Rigorous Imprisonment” and liable to pay <i>Daman</i> Rs.25,000/- along with compensation Rs.25,000/- and in default thereof to further undergo Simple Imprisonment for six months.

The petitioner challenged his aforementioned convictions recorded and sentences awarded to him before this Court through Crl. Appeal No.415-J/2012, which was dismissed *vide* judgment dated: 14.03.2017 passed by Division Bench of this Court whereby all the convictions recorded against the petitioner by the trial court were maintained however sentence of death awarded to the appellant under Section: 302 (b) PPC read with Section: 34 PPC was modified to “Imprisonment for Life” whereas sentences awarded to him by the trial court under other offences including payment of compensation, fine, *Daman* and the sentence of imprisonment in default thereof as ordered by trial court were also maintained; all the sentences awarded to the petitioner were ordered to run concurrently and benefit of Section: 382-B Cr.P.C. was also extended to him; in this regard, paragraph No.21 of said judgment is scanned below: -

21. Considering abque, conviction of both the appellants (Gulzar alias Jino and Qasim) in offence under section 302(b) read with 34 PPC for committing the murder of Falak Sher deceased are maintained but their sentences are altered from death to imprisonment for life each. The compensation and sentence in default thereof awarded by the trial court through the impugned judgment are also maintained and upheld. Conviction and sentences of both the appellants (Gulzar alias Jino and Qasim) on other heads i.e. in offences under section 324 and 337-F(iii) PPC read with section 34 PPC are also maintained. All the sentences of the appellants shall run concurrently. Benefit of section 382-B Cr.P.C is given to both the appellants.

Thereafter, as per report submitted by Superintendent, Central Jail, Faisalabad, Jail Petition No.247 of 2018 was also dismissed *vide* judgment dated: 27.09.2023 passed by the Supreme Court of Pakistan.

It is relevant to mention here that after registration of aforementioned “1st case”, another case arising out of F.I.R. No.47/2006 dated: 28.03.2006 was registered against the petitioner under Sections: 302, 324, 337-F(iii), 34 PPC at Police Station: Qadirpur, District: Jhang (hereinafter to be referred as “2nd case”) wherein he was summoned by the trial court and after conclusion of the trial, he was

convicted and sentenced *vide* judgment dated: 26.01.2013 passed by learned Additional Sessions Judge, Jhang, as under: -

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302 (b) PPC	“ Death ” along with payment of compensation of Rs.2,00,000/- to be paid to the legal heirs of the deceased under Section: 544-A Cr.P.C. and in default thereof to further undergo Simple Imprisonment for six months.
<u>Under Section:</u> 324/34 PPC	“ Seven years’ Rigorous Imprisonment ” along with fine of Rs.25,000/- and in default thereof to further undergo Simple Imprisonment for three months.
<u>Under Section:</u> 337-F(iii)/34 PPC	“ Three years’ Rigorous Imprisonment ” and liable to pay <i>Daman</i> Rs.25,000/-

Feeling aggrieved, petitioner also challenged his aforementioned convictions and sentences before this Court through Crl. Appeal No.47-J/2013, which was disposed of *vide* judgment dated: 13.10.2016 passed by Division Bench of this Court whereby all the convictions recorded against the petitioner by the trial court (as detailed above) were maintained however sentence of death awarded to the appellant under Section: 302 (b) PPC was modified to “Imprisonment for Life” whereas sentences awarded to the petitioner by the trial court under other offences including payment of compensation, fine, *Daman* and the sentence of imprisonment in default thereof as ordered by the trial court were also maintained; all the sentences were ordered to run concurrently and benefit of Section: 382-B Cr.P.C. was also extended in favour of the convict/petitioner.

3. Learned counsel for the petitioner submits that jail authorities are not releasing the petitioner/convict by counting his all sentences concurrently in both above-mentioned cases and prays for passing order for running of all the sentences awarded to the convict/petitioner by the trial court in aforementioned two separate cases/trial concurrently instead of consecutively except the sentences in default of payment of compensation, fine and *Daman*; further submits that any petition for leave to appeal, appeal, review or petition of any other nature regarding these both cases is currently not pending before Supreme Court of Pakistan or any other Court. He has referred order dated: 11.09.2024 passed by this Court in Writ Petition No.37080/2023 titled as “Qasim versus The State, etc.” (copy whereof is available at Page No.35 to 37 of instant petition).

4. Learned Additional Advocate General, Punjab fairly submits that in the peculiar facts and circumstances of the case, she has no objection on passing the order for running of the sentences awarded to the petitioner in aforementioned both cases concurrently except the sentences awarded to him in default of payment of compensation, fine and *Daman*; in this regard, she has referred case of “**Rahib Ali versus The State**” (2018 SCMR 418).

5. **Arguments heard. Record perused.**

6. On 17.01.2025, report and parawise comments to this petition were requisitioned from jail authorities which have been received and the same are available on the record as apprised by Additional Registrar (Court); relevant portion of said report and parawise comments is hereby reproduced as under: -

“Dear Sir,

I have the honour to submit report and para-wise comments on the above titled writ petition as under:-

REPORT

It is submitted that the Petitioner namely Gulzar @ Gulzari s/o Shahdat is currently confined in Central Jail Faisalabad. He was admitted in the Jail on 08.12.2006. He is serving his sentence in the following cases.

1. FIR No.297/2001 u/s 302/324 p/s Bhowana is as under

He was convicted & Sentence by the Learned Court of Mr. Aqil Hassan Chohan, Additional District & Sessions Judge, Chiniot on 28.09.2012. The detail of sentence is as under:-

- i. *U/S 302(b) death sentence compensation of Rs.200000/ or 06 months S.I*
- ii. *ii. U/S 324 PPC 07 years R.I + Fine of Rs. 10000/- or 06 months S.I*
- iii. *U/S 337-Fiii PPC 03 years R.I + Daman of Rs.25000/- or 06 months S.I*

Upon Criminal Appeal No.415-J of 2012 the death sentence was converted into imprisonment for life remaining sentence was maintained. All the sentences were ordered to run concurrently in said case. The benefit of section 382-B Cr.P.C was given to the accused by the orders of Honorable Lahore High Court Lahore vide judgment dated 14.03.2017. His jail Petition No. 247 of 2018 has been dismissed by the orders of the August Supreme Court of Pakistan Islamabad vide Judgment dated 27.09.2023. He has been served out his sentence in this case after getting the remission of 3156 days, on 01.03.2023.

2. FIR No.47/2006 u/s 302/324/337-F(iii)/34 PPC p/s Qadir Pur District Jhang.

He was also convicted & sentenced in above said case by the Learned Court of Ch. Muhammad Hussain, Additional District & Sessions Judge Jhang on 26.01.2013. The detail of sentence is as under:-

- i. *U/S 302(b) death sentence + compensation of Rs.200000/ or 06 months S.I*
- ii. *ii. U/S 324 PPC 07 years R.I + Fine of Rs.25000/- or 03 months S.I*
- iii. *U/S 337-Fiii PPC 03 years R.I + Daman of Rs.25000/-*

All the sentences were ordered to run concurrently in said case. The benefit of section 382-B Cr.P.C was given to the accused.

Upon Criminal Appeal No.47-J of 2013 the death sentence was converted into imprisonment for life, while remaining sentence was maintained by the orders of Honorable Lahore vide judgment dated 13.10.2016. The sentence of case FIR No. 47/2006 is commenced after expiry of sentence in case FIR No. 297/2001 i.e 01.03.2023.

Detail of served /un-served sentence and remissions earned by the prisoner is as under:-

Sr. No.	Description	Y	M	D
Total Sentence		25	00	00
1.	Substantive sentence including undertrial period	08	00	16
2.	Remission earned	05	08	00
3.	Remaining sentence	11	03	14
4.	Probable date of release	11.05.2036. If compensation, fine & Daman paid		

Above mentioned sentences of the both cases were not ordered to run concurrently by any trial court as well as any appellant court, Hence, the sentences of both cases were calculated as consecutive.

PARA WISE COMMENTS

1. No Comments.
2. Correct
3. Correct.
4. Partly correct. The petitioner conviction is rightfully treated as consecutive because no competent authority i.e Learned trial courts or appellant courts have directed that convictions in above mentioned different FIRs to be run concurrently.
5. Section 397 of the Code of Criminal Procedure (CrPC) gives the court power to consolidate sentences in multiple trials. As no appellant court or trial court has used this discretion by mentioning sentences of other case to run concurrent, his sentences were treated as consecutive by Jail authority.
6. No Comments.
7. Incorrect. All ordinary and special remissions have been granted to the petitioner as per law due to which he has completed his sentence in case FIR 297/2001 and his sentence in case 47/2006 has significantly been reduced. As of today, the petitioner has earned remission of 05 year 08. months and 00 days.
8. No Comments
9. No Comments
10. No Comments”

Aforementioned report clearly reveals that convict/petitioner was admitted in the jail on 08.12.2006 and since then, he is confined therein. It has been mentioned in said report that since sentences of the petitioner in both cases were not ordered to run concurrently by any trial court as well as appellate court, therefore, the sentences of both the cases were calculated as consecutive. By now it is well settled that this Court can order for running of the sentences awarded to the convict in a case or even in more cases concurrently; in this regard, guidance has been sought from above referred case of **“Rahib Ali versus The State”** (2018 SCMR 418) and relevant portion whereof is being reproduced below: -

“17. In the light of discussion made above, there remains no doubt that the High Court and so also this Court have jurisdiction under section 561-A read with section 35 and or section 397, Cr.P.C. as the case may be ordered such multiple sentences in same transaction/trial or in a separate and subsequent trial to run concurrently”

Further guidance can also be sought from the authoritative pronouncement on the subject in the case of **“NOOR MUHAMMAD and others versus The STATE”** (2025 SCMR 540) and relevant portion of the same is reproduced as under: -

“The admitted fact of the case is that all the three FIRs are a result of one and the same transaction. Under Section 397 Cr.P.C., the Court has power to direct that the sentences awarded to the petitioner in the other FIRs shall run concurrently. In Mst. Shahista Bibi², this Court has held that the sentences of imprisonment or that of life imprisonment awarded at the same trial or in two different trials have to run concurrently. It is always expected that the Courts are required to exercise its discretion in favour of the accused, especially in the cases of minors, unless the circumstances demand otherwise, but in the case in hand, the discretion has not been exercised, which has caused prejudice to the rights of the accused/minor. It is a fact that the petitioner at the time of his arrest, was minor, and is behind the bars since 2006. He has almost served out his substantive sentence for life, therefore, on the basis of the facts and circumstances of the case, the petitioner is entitled for the benefit of Section 397 Cr.P.C. Since, the learned counsel for the petitioner does not want to pursue the matter on merits and requested for concurrence of the sentences, we are inclined to take a lenient view by accepting his request.

Thus, in view of the above, the convictions and sentences awarded to the petitioner as mentioned in Paragraph No. 2 of this judgment are maintained. However, all the sentences shall run concurrently, with a benefit of Section 382-B Cr.P.C.”

7. In view of what has been discussed above, it is ordered that sentences awarded to the petitioner/convict in both aforementioned cases i.e. arising out of F.I.R. No.297/2001 dated: 28.09.2001 registered at Police Station: Bhowana, District: Jhang and F.I.R. No.47/2006 dated: 28.03.2006 registered at Police Station: Qadirpur, District: Jhang, would run “concurrently” except sentences of imprisonment in default of payment of compensation, fine or *Daman*. Benefit under Section: 382-B Cr.P.C. in both the cases has already been granted to the petitioner. Instant writ petition stands **disposed of in above terms.**

(Ch. Sultan Mahmood)
Judge

(Farooq Haider)
Judge

APPROVED FOR REPORTING

(Ch. Sultan Mahmood)
Judge

(Farooq Haider)
Judge